

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shadman Khan	Team: Squad #12	CCRB Case #: 202301786	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 02/21/2023 11:35 PM	Location of Incident: In front of 47 Kingsland Avenue in Brooklyn	18 Mo. SOL 8/21/2024	Precinct: 94
Date/Time CV Reported Wed, 02/22/2023 12:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/02/2023 7:13 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Sadique Cottlehaddaway	15220	966005	BN SU CRT
2. PO Keoto Peterson	28884	967253	BN SU CRT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Daniel Roman	03078	948270	BN SU CRT
2. PO Andrew Tofalli	26431	955584	PBBN SU PST
3. PO Stefan Weaver	12423	965901	081 PCT
4. PO Nicholas Angello	24277	962217	094 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Sadique Cottlehaddaway	Abuse: Police Officer Sadique Cottlehaddaway stopped § 87(2)(b)	A . Substantiated
B . PO Sadique Cottlehaddaway	Abuse: Police Officer Sadique Cottlehaddaway frisked § 87(2)(b)	B . Substantiated
C . PO Keoto Peterson	Abuse: Police Officer Keoto Peterson stopped an individual.	C . Miscellaneous - Subject Resigned
D . PO Keoto Peterson	Abuse: Police Officer Keoto Peterson frisked an individual.	D . Miscellaneous - Subject Resigned
E . PO Sadique Cottlehaddaway	Force: Police Officer Sadique Cottlehaddaway used physical force against § 87(2)(b)	E . Unable to Determine
F . PO Keoto Peterson	Abuse: Police Officer Keoto Peterson refused to provide their shield number to an individual.	F . Miscellaneous - Subject Resigned
G . PO Sadique Cottlehaddaway	Abuse: Police Officer Sadique Cottlehaddaway refused to provide his command assignment to § 87(2)(b)	G . Substantiated
H . PO Sadique Cottlehaddaway	Abuse: Police Officer Sadique Cottlehaddaway refused to provide his shield number to an individual.	H . Substantiated
I . PO Keoto Peterson	Abuse: Police Officer Keoto Peterson failed to provide an individual with a business card.	I . Miscellaneous - Subject Resigned

Case Summary

On February 22, 2023, § 87(2)(b) filed this complaint with IAB on behalf of his stepson § 87(2)(b) a fifteen-year-old civilian, generating original log § 87(2)(b). Spin off § 87(2)(b) was subsequently received by the CCRB on March 2, 2023.

On February 21, 2023, at approximately 11:35 PM, in front of 47 Kingsland Avenue in Brooklyn, PO Sadique Cottlehaddaway of the Patrol Bureau Brooklyn North Community Response Team stopped and frisked § 87(2)(b) (**Allegations A and B: Abuse of Authority, Substantiated**). At the same time, PO Keoto Peterson of the Patrol Bureau Brooklyn North Community Response Team stopped and frisked § 87(2)(b) unidentified friend (**Allegations C and D: Abuse of Authority, Subject Resigned**). During these interactions, PO Cottlehaddaway allegedly took hold of § 87(2)(b) injured right arm in a forceful manner (**Allegation E: Force, Unable to Determine**). § 87(2)(b) unidentified friend asked for PO Peterson's shield number, but PO Peterson did not provide it (**Allegation F: Abuse of Authority, Subject Resigned**). PO Cottlehaddaway failed to provide his command assignment to § 87(2)(b) (**Allegation G: Abuse of Authority, Substantiated**) and refused to provide his shield number to the unidentified friend (**Allegation H: Abuse of Authority, Substantiated**). PO Peterson failed to provide his business card to § 87(2)(b) unidentified friend (**Allegation I: Abuse of Authority, Subject Resigned**).

There is no summons or arrest associated with this incident.

The investigation obtained six body worn camera (BWC) videos capturing this incident (Board Review 01), summarized in IA #59. The investigation received 67 surveillance video recording clips from Miss Bubble Laundromat, located at 47 Kingsland Avenue in Brooklyn (Board Review 05 to Board Review 07). It was ultimately determined that those surveillance video clips were not pertinent to this investigation.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Sadique Cottlehaddaway stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Sadique Cottlehaddaway frisked § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Keoto Peterson stopped an individual.

Allegation (D) Abuse of Authority: Police Officer Keoto Peterson frisked an individual.

Allegation (E) Force: Police Officer Sadique Cottlehaddaway used physical force against § 87(2)(b)

It is undisputed that PO Cottlehaddaway stopped and frisked § 87(2)(b) at his own discretion and based on his own observations, without instruction from Sgt. Roman.

§ 87(2)(b) provided the CCRB with a statement on March 17, 2023 (Board Review 08). He stated that his father dropped him and his friend off in front of a deli at the corner of Kingsland Avenue and Withers Street in Brooklyn. § 87(2)(b) declined to identify his friend.) When § 87(2)(b) exited the vehicle, he stepped near a large rat. Frightened, § 87(2)(b) jumped and ran along Withers Street. His pants slid down as he ran from the rat. § 87(2)(b) stopped in front of 47 Kingsland Avenue to pull his pants up. An unmarked gray sedan drove along Withers Street toward § 87(2)(b) and stopped adjacent to § 87(2)(b). Officers identified as Sgt. Daniel Roman, PO Cottlehaddaway, PO Peterson, and PO Andrew Tofalli of the Patrol Bureau Brooklyn North Community Response

Team exited the vehicle. PO Cottlehaddaway approached § 87(2)(b) while shining his flashlight underneath cars on the street. PO Cottlehaddaway then approached § 87(2)(b) and immediately frisked § 87(2)(b) by squeezing his pant pockets, sweatshirt pockets, and waist area. PO Cottlehaddaway did not reach into any pocket. At the same time, PO Peterson approached § 87(2)(b) friend and conducted a similar frisk. § 87(2)(b) did not see the entirety of the frisk PO Peterson performed on his friend. Prior to this incident, § 87(2)(b) had undergone surgery on his right arm and his right forearm was in a cast. At some point during § 87(2)(b) interaction with PO Cottlehaddaway, PO Cottlehaddaway forcefully grabbed § 87(2)(b) injured right arm.

Without any identifying or contact information for § 87(2)(b) unidentified friend, the investigation was unable to obtain a statement from him. A request for warrant audit records performed by all of the officers involved in this incident returned negative results (Board Review 21).

At the beginning of PO Cottlehaddaway's BWC video (Board Review 02), PO Cottlehaddaway sits in the front passenger seat of a vehicle for approximately 30 seconds before the vehicle drives forward slowly and makes a left turn. At 46 seconds, PO Cottlehaddaway exits the vehicle and approaches § 87(2)(b) who wears black pants, black shoes, a black vest, and a dark blue sweatshirt. § 87(2)(b) holds his hands out at his sides. § 87(2)(b) right hand is bandaged and holds a cellphone. His left hand is empty. § 87(2)(b) slowly steps back until PO Cottlehaddaway reaches him near a Citi Bike station. At 59 seconds, audio begins, and PO Cottlehaddaway tells § 87(2)(b) to take his hands out of his pockets. § 87(2)(b) asks what the officers are doing. PO Cottlehaddaway uses his right hand to squeeze the front of § 87(2)(b) vest, beneath what appears to be a protruding bag of Cool Ranch Doritos. At 1 minute 5 seconds, PO Cottlehaddaway's right hand is visible squeezing § 87(2)(b) pants pocket. § 87(2)(b) backs up to a metal fence and PO Cottlehaddaway moves with him. At 1 minute 9 seconds, PO Cottlehaddaway says, "Look under the car for me." PO Cottlehaddaway then stands in front of § 87(2)(b) while another nearby interaction is audible but not visible. At 1 minutes 54 seconds, PO Cottlehaddaway says, "Listen, the reason why I stopped you – as soon as I came, you dipped down and started running over here [inaudible] under the car." § 87(2)(b) says, "I saw a mouse that was under me. That's why I jumped up." At 2 minutes 5 seconds, PO Cottlehaddaway backs away from § 87(2)(b).

In PO Peterson's BWC video (Board Review 04), at 56 seconds, PO Peterson exits the police vehicle and activates his BWC. 1 minute 5 seconds, PO Peterson approaches § 87(2)(b) unidentified friend. Behind, PO Cottlehaddaway moves § 87(2)(b) against a metal fence. At 1 minute 7 seconds, PO Peterson places his left hand on the unidentified individual's chest, guiding him backward until his back is against a painted brick wall. At 1 minute 12 seconds, PO Peterson frisks the sides of the individual's jacket. PO Peterson then holds the individual against the wall while the individual complains about the stop. PO Peterson holds him against the wall until 1 minute 54 seconds and then releases him.

Sgt. Roman's BWC video (Board Review 03) captures the stops from another angle. At 49 seconds, Sgt. Roman exits the vehicle. At 1 minute, Sgt. Roman approaches PO Cottlehaddaway, § 87(2)(b) PO Peterson, and the unidentified individual. At 1 minute 12 seconds, Sgt. Roman uses a flashlight to look at the wheels of and beneath a parked vehicle. At 1 minute 25 seconds and again at 1 minute 33 seconds, PO Cottlehaddaway squeezes the outer pocket of § 87(2)(b) vest against and then pats the waist area.

Note that none of the above-detailed BWC videos ever shows PO Cottlehaddaway forcefully grabbing at § 87(2)(b) injured arm. However, the videos do not create a clear and continuous

record of the interaction between PO Cottlehaddaway and § 87(2)(b) and so also do not demonstrate that PO Cottlehaddaway never took such action.

The investigation received Stop Reports § 87(2)(b) and § 87(2)(b) both generated by PO Cottlehaddaway (Board Review 11). Report § 87(2)(b) states that officers stopped a male who sprinted down the street and then ducked to the side of the vehicle. The male then placed his hands inside of a pocket, where a rigid L shaped object was observed, which officers believed to be a pistol. The frisk determined the object to be a wallet. A business card was offered and refused. Report § 87(2)(b) states that officers stopped another male after observing him sprint down the street at the sight of officers and adjust the right side of his waistband. As officers approached, a long cylindrical object that they believed to be the barrel of a revolver faced downwards in the pocket. The frisk determined the object to be a phone charger for a car.

PO Cottlehaddaway's memo book (Board Review 12) states that at 11:35 PM, a male saw officers, ducked under a car, and placed his hand in a pocket while holding an "L" shaped object. The male was frisked and the item was determined to be a wallet.

PO Cottlehaddaway provided the CCRB with a statement on September 15, 2023 (Board Review 09). He stated that was on patrol within the 94th Precinct, addressing various quality-of-life issues. PO Cottlehaddaway was not responding to any job or 911 calls at the time of this incident. While driving, PO Cottlehaddaway observed three males exiting a bodega. The area in question was dimly lit. One of the males, identified by the investigation as § 87(2)(b) looked at PO Cottlehaddaway's vehicle, grabbed his waistband, and ran away. § 87(2)(b) ran around the corner toward another parked vehicle and appeared to crouch down next to it. PO Cottlehaddaway decided to stop § 87(2)(b) and investigate his actions. Once the vehicle drove closer to § 87(2)(b) PO Cottlehaddaway exited and approached. § 87(2)(b) had four fingers of his left hand within his waistband. PO Cottlehaddaway was not sure if § 87(2)(b) was hiding something in his pants or if he threw something underneath a vehicle. PO Cottlehaddaway believed it was possible that § 87(2)(b) had a weapon on his person based on the above-described behavior. PO Cottlehaddaway instructed § 87(2)(b) to remove his hands from his waistband. § 87(2)(b) backed away, so PO Cottlehaddaway grabbed at his jacket to prevent him from running away. PO Cottlehaddaway felt the crinkle of a bag of chips when he grabbed § 87(2)(b) was not free to leave because PO Cottlehaddaway was investigating whether § 87(2)(b) had a weapon, and why he had ducked down near a vehicle and grabbed at his waistband. PO Cottlehaddaway did not take hold of § 87(2)(b) bandaged arm at any time. PO Cottlehaddaway patted the front pockets of § 87(2)(b) pants, near the waistband area. PO Cottlehaddaway felt a rectangular object that felt L-shaped in the pocket. PO Cottlehaddaway then determined via frisking that this was § 87(2)(b) wallet. PO Cottlehaddaway did not reach into any pocket. PO Cottlehaddaway asked § 87(2)(b) why he had ducked down and run away from officers. § 87(2)(b) responded that he had seen a mouse, causing him to run. After § 87(2)(b) provided an explanation as to why he had run away, and after PO Cottlehaddaway felt only a wallet in § 87(2)(b) pocket, § 87(2)(b) was free to leave.

During his CCRB interview, PO Cottlehaddaway was shown the above-detailed stop reports. PO Cottlehaddaway affirmed that he completed both stop reports. However, he generated report § 87(2)(b) for PO Peterson, who stopped another civilian. The narrative for that report was provided to him by PO Peterson. PO Cottlehaddaway generated the report for PO Peterson but did not conduct that stop himself.

Sgt. Roman provided the CCRB with a statement on September 15, 2023 (Board Review 10). He stated that while driving around the location, PO Cottlehaddaway observed § 87(2)(b) running down the street. PO Cottlehaddaway then made the decision to stop § 87(2)(b) When Sgt. Roman

exited the vehicle and approached § 87(2)(b) he saw that PO Cottlehaddaway had guided § 87(2)(b) toward a fence. No officer grabbed § 87(2)(b) arm. Sgt. Roman also observed PO Cottlehaddaway frisk § 87(2)(b) stomach area. Sgt. Roman did not see PO Cottlehaddaway frisk any other area. Sgt. Roman did not instruct PO Cottlehaddaway to conduct the frisk; PO Cottlehaddaway conducted the frisk of his own volition. Sgt. Roman did not observe any bulge on § 87(2)(b) person or anything that indicated that § 87(2)(b) might have a weapon. PO Cottlehaddaway did not inform Sgt. Roman prior to or during the stop of whether PO Cottlehaddaway had observed any bulge on § 87(2)(b) person. Sgt. Roman later learned of this reported observation when he reviewed PO Cottlehaddaway's stop report.

IAB conducted a concurrent investigation regarding the alleged force used during the incident (Board Review 17). According to the IAB findings, the force used involved PO Cottlehaddaway holding § 87(2)(b) as he backed up, so he did not run away. Based on this, IAB determined that force was within guidelines to conduct the stop. Their investigation into the stop indicated that PO Cottlehaddaway conducted the stop because he observed a possible weapon. IAB did not investigate the validity of the stop itself and noted that the CCRB would investigate that allegation.

According to the NYPD, PO Peterson resigned from the NYPD as of October 4, 2023 (Board Review 13).

Per *People v. Riddick*, 894 N.Y.S.2d 260 (2010) (Board Review 14), police may pursue a fleeing defendant if they have a reasonable suspicion that the defendant has committed or is about to commit a crime. Flight alone is insufficient to justify pursuit because an individual has a right to be let alone and refuse to respond to police inquiry. The court found that the fact that a defendant reaching for his waistband, absent an indication of a weapon, did not establish reasonable suspicion that the defendant had committed or was about to commit a crime.

In *People v. Stevenson*, 779 N.Y.S.2d 498 (2004) (Board Review 15), the courts found that in the absence of any testimony which would indicate that an officer was in fear for his safety or had other information indicative of criminality, a stop and frisk of a defendant was not justified. In that case, an officer's observations of a defendant adjusting his clothing around a bulge several times were readily susceptible of an innocent as well as a guilty explanation and was not sufficient to permit a forcible detainment or frisk the defendant.

§ 87(2)(g)

While the stop reports indicated that PO Cottlehaddaway observed an L-shaped object, he informed the CCRB investigation that he felt such an object only upon frisking § 87(2)(b) § 87(2)(g)

§ 87(2)(g), it is recommended that **Allegations A and B** be closed as **Substantiated**.

§ 87(2)(g) it is recommended that **Allegations C and D** be closed as **Subject Resigned**.

As noted above, none of the BWC videos ever shows PO Cottlehaddaway forcefully grabbing at § 87(2)(b) injured arm, but the videos do not demonstrate that PO Cottlehaddaway never took such action. § 87(2)(g)

it is recommended that **Allegation E** be closed as **Unable to Determine**.

Allegation (F) Abuse of Authority: Police Officer Keoto Peterson refused to provide their shield number to an individual.

Allegation (G) Abuse of Authority: Police Officer Sadique Cottlehaddaway refused to provide his command assignment to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Sadique Cottlehaddaway refused to provide his shield number to an individual.

Allegation (I) Abuse of Authority: Police Officer Keoto Peterson failed to provide an individual with a business card.

According to § 87(2)(b) (Board Review 08), after PO Cottlehaddaway frisked him, officers asked § 87(2)(b) what had happened. § 87(2)(b) explained that he saw a large rat and ran out of fear. PO Cottlehaddaway explained that everything had been a misunderstanding. § 87(2)(b) asked one of the officers for their shield number but did not recall whom specifically he asked. Subsequently, Sgt. Roman provided § 87(2)(b) with his business card.

In PO Peterson's BWC video (Board Review 04), at 1 minute and 5 seconds, PO Peterson approaches § 87(2)(b) unidentified friend. While approaching, the friend asks PO Peterson, "Let me see y'all badge number?" PO Peterson does not respond to the request.

In PO Cottlehaddaway's BWC video (Board Review 02), at 1 minute 3 seconds, someone off camera asks PO Cottlehaddaway for his "badge number." PO Cottlehaddaway responds that he will provide the information but does not verbally state his shield number. (Note that this is an earlier request, apparently directed to PO Cottlehaddaway. Shortly afterward, the unidentified friend is audible asking PO Peterson for his shield number, as detailed in the paragraph above.) At 1 minute 42 seconds, § 87(2)(b) asks the officers, "What precinct y'all from?" Sgt. Roman offers § 87(2)(b) a business card. § 87(2)(b) asks the officers again for their "precinct." No officer provides their command assignment. At 1 minute 50 seconds, PO Cottlehaddaway states at a low volume either, "You want me to give you a card?" or "You want him to give you a card?" § 87(2)(b) answers, "Nah. What precinct y'all from?" PO Cottlehaddaway does not respond. At 2 minutes 18 seconds, someone off camera asks for a business card. At 2 minutes 24 seconds, someone off screen asks, "Let me get your badge number, too." It is unclear who asks or to whom this request is directed. PO Cottlehaddaway does not give his shield number to any civilian at any point during the interaction.

In Sgt. Roman's BWC video (Board Review 03), at 2 minutes 5 seconds, Sgt. Roman offers to provide § 87(2)(b) unidentified friend with a business card. At 2 minutes 13 seconds (23:36:34), § 87(2)(b) friend shouts a request for an officer's shield number, directing the request behind Sgt. Roman. The video does not show to whom he directs this request. At 02 minutes 20 seconds, Sgt. Roman provides his business card to § 87(2)(b) and the unidentified friend. No other officer provides a business card to § 87(2)(b) and his friend.

In PO Peterson's BWC video (Board Review 04), at 2 minutes 19 seconds, Sgt. Roman is visible standing in front of § 87(2)(b) and § 87(2)(b) unidentified friend. At 2 minutes 21 seconds (23:36:34), the unidentified friend shouts toward PO Cottlehaddaway, "Yo, I want to see your badge number, too, over there." In this way, a comparison of Sgt. Roman's and PO Peterson's BWC videos, both capturing the unidentified friend's request for a shield number, reveal that this request was audibly directed toward PO Cottlehaddaway as he walked away.

According to PO Cottlehaddaway (Board Review 09), Sgt. Roman took over speaking with § 87(2)(b) after § 87(2)(b) explained why he ran away. During this time, § 87(2)(b) asked what precinct the officers were from. PO Cottlehaddaway answered that they were not from a precinct. PO Cottlehaddaway asked § 87(2)(b) if he wanted a business card. Sgt. Roman also offered his business card as well. § 87(2)(b) did not want the business card but only wanted to know what precinct the officers were from. Sgt. Roman provided § 87(2)(b) with his business card regardless. PO Cottlehaddaway did not provide his business card. PO Cottlehaddaway never provided his name and shield number to anyone during the incident. § 87(2)(b) did not ask for any shield numbers from any officers during the incident.

Sgt. Roman's statement was consistent with PO Cottlehaddaway's statement (Board Review 10). Sgt. Roman did not hear § 87(2)(b) request for any officers' shield number. Sgt. Roman did not hear any other officer provide their identification information to § 87(2)(b). Sgt. Roman provided his business card to § 87(2)(b) and another individual at the location. Sgt. Roman did not recall if any other officer provided a business card.

In stop report § 87(2)(b) (Board Review 11), PO Cottlehaddaway noted that at the conclusion of the stop, he provided a reason and offered a business card, which § 87(2)(b) refused. In PO Cottlehaddaway's memo book (Board Review 12), an entry made at 23:35 notes that § 87(2)(b) refused a business card from PO Cottlehaddaway.

As discussed in allegations C and D, PO Peterson resigned from the NYPD as of October 4, 2023 (Board Review 13).

Per NYPD Administrative Guide 304-11, officers are to courteously provide their rank, name, shield number, and command, or otherwise provide them, to anyone who requests you to do so. A business card is to be offered upon the conclusion of law enforcement activities, except in cases when a summons is issued or an arrest is made at the conclusion of any law enforcement activity, including a stop and frisk (Board Review 16).

§ 87(2)(g) BWC video revealed that it was his friend who asked for shield numbers from the officers. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegations F and I** be closed as **Subject Resigned**.

It is undisputed that PO Cottlehaddaway did not verbally state his shield number or command assignment at any point during the incident. § 87(2)(g)
§ 87(2)(g) BWC video shows that § 87(2)(b) unidentified friend asked for PO Cottlehaddaway's shield number immediately when PO Cottlehaddaway initially stopped § 87(2)(b). PO Cottlehaddaway responded to this request, saying that he would provide the requested information, but did not then do so. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Additionally, BWC video reveals that PO Cottlehaddaway offered § 87(2)(b) a business card. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

it is recommended that Allegations G and H be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Cottlehaddaway has been a member of service for five years and has been named a subject in one other CCRB complaint and four allegations, none of which were substantiated. § 87(2)(g)
- PO Peterson has been a member of service for four years and has been named a subject in five CCRB complaints and 12 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of November 9, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 12

Investigator:	Shadman Khan	SI Shadman Khan	11/20/2023
	Signature	Print Title & Name	Date

Squad Leader:	Samuel Ross	IM Samuel Ross	11/20/2023
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date